

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

KENNETH SENGHOR, MICHAEL JONES and
LOUIS NUNEZ

Plaintiff

Index No.
Date Filed:

SUMMONS

Plaintiff
designates Bronx
County as the place
of trial.

- against -

Venue is designated
based
upon PLAINTIFF's
address.

THE CITY OF NEW YORK
and POLICE OFFICER GUSTAVO PAUL

Defendant.

Plaintiff's
address is:
100 Debs Pl Bronx
NY.

-----X.

YOU ARE HEREBY SUMMONED to appear in the Supreme Court of
the City of New York, County of Bronx at the Office of said Court at 851 Grand
Concourse, in the County of Bronx, City and State of New York, within the time
provided by law (The law provides that if this summons is served by its delivery to
you personally within the City of New York, you must appear and answer within
TWENTY days after such service; or if this summons is served by delivery to any
person other than you personally, or is served outside the City of New York, or by
publication, or by any means other than personal delivery to you within the City of

New York, you are allowed **THIRTY** days after proof of service thereof is filed with the Clerk of this Court within which to appear and answer) and to file your answer to the annexed complaint with the Clerk; upon your failure to answer, judgment will be taken against you for the sum of \$6,000,000.00 with interest thereon from the day allowed by law together with costs of this action.

Dated: New York, New York
December 8, 2016

LAW OFFICES OF SAUL BIENENFELD PC
Attorney for Plaintiffs
450 Seventh Avenue
New York, N.Y. 10123
Tel: (212) 363-7701

TO:
City of New York
One Centre Street
NYC NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDEX#

-----X

KENNETH SENGHOR, MICHAEL JONES and
LOUIS NUNEZ

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
POLICE OFFICER GUSTAVO PAUL
Defendants

-----X

Plaintiffs, KENNETH SENGHOR, MICHAEL JONES and

LOUIS NUNEZ, by their counsel, Saul Bienenfeld, complaining of the defendants state as
follow:

1. Plaintiff, Kenneth Senghor, at all times hereinafter mentioned was and still is a
resident of the County of Bronx, State of New York.
2. Plaintiff, Michael Jones, at all times hereinafter mentioned was and still is a
resident of the County of Bronx, State of New York.
3. Defendant, Gustavo Paul, was and still is a police officer employed in and by
New York City. Defendant Paul is sued individually and in his capacity as a
police officer in and with the City of New York.
4. Defendant Paul was at the time of the acts complained of herein a servant and
employee of New York City, and at all times herein was acting under such
employment and within the scope of their authority as a police officer for the City
of New York.
5. Plaintiff, Louis Nunez, at all times hereinafter mentioned was and still is a
resident of the County of Bronx, State of New York.
6. At all times hereinafter mentioned the defendant, THE CITY OF NEW YORK

was and still is a municipal corporation duly existing by virtue of the laws of the State of New York with the power and authority to carry out municipal functions including the maintenance and operation of the New York City Police Department

7. On February 2, 2016, within ninety (90) days after the claim herein sued upon arose, a notice of claim in writing, sworn to by and on behalf of the claimant, was duly served on the Comptroller of the City of New York, which notice of claim set forth the names and addresses of the claimants and their attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and the items of damage or injuries claimed to have been sustained so far as then practicable.
8. That more than thirty (30) days have elapsed since the service of said notice of claim and the plaintiffs' claims have not been adjusted or paid.
9. That this action is brought within one (1) year and ninety (90) days from the date of the occurrence.

FIRST CAUSE OF ACTION

10. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "9" above as if more fully set forth herein.
11. On or about December 20, 2015, at approximately 1:40 AM Kenneth Senghor, Michael Jones and Louis Nunez were arrested by the New York City Police Department at a restaurant named Senor Frogs located at 640 Eighth Avenue New York City, New York.
12. At said date and time Kenneth Senghor, Michael Jones and Louis Nunez were lawfully at the restaurant and committing no crimes.

13. Kenneth Senghor, Michael Jones and Louis Nunez were charged with the crimes of Theft of Services, Penal Law 165.15(2). They each spent a day in jail and suffered the embarrassment of being arrested in front of the entire restaurant.
14. Kenneth Senghor was also charged with Resisting Arrest Penal Law 205.30.
15. The criminal case against Kenneth Senghor was dismissed on November 14, 2016. The case against the other Plaintiffs are pending at the time of drafting this Complaint.
16. On the morning of December 20, 2015 while attempting to pay a \$402.25 bar tab Police Officer Paul and others arrested the Plaintiffs as well as three other individuals claiming that each of them committed the crime of Theft of Services.
17. The police refused to conduct any investigation prior to making these arrests nor to determine which of the arrestees, if any, were responsible for the bar tab or the amount each arrestee was responsible for, if in fact any were responsible.
18. At the aforesaid time and place, Police Officer Gustavo Paul, without any arrest warrant(s), without reasonable or probable cause, without justification, and without authority, wrongfully, unlawfully, maliciously and intentionally arrested plaintiffs Kenneth Senghor, Michael Jones and Louis Nunez.
19. Defendant then forced and compelled plaintiffs Kenneth Senghor, Michael Jones and Louis Nunez to be handcuffed and caused them to be held under arrest and imprisoned against their will. Defendant then compelled and caused plaintiffs to be taken to a police precinct, where plaintiff suffered the indignity and humiliation of being arrested. After spending the night in jail the Plaintiffs were arraigned the next evening.

20. Defendant THE CITY OF NEW YORK, through its agents, servants and/or employees acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of plaintiff.
21. At the time of their arrest, plaintiffs had committed no illegal act.
22. At the time of their arrests and false imprisonment, plaintiffs had not committed nor attempted to commit any crime.
23. At the time of the arrest of plaintiffs defendant THE CITY OF NEW YORK, through its agents, servants and/ or employees knew or should have known, through the exercise of proper police procedure and reasonable investigation that the aforementioned arrest and detentions were false and without probable cause.
24. Said false arrest and false imprisonment caused each plaintiff to suffer severe mental distress and anguish, humiliation, physical injuries, legal expenses and damage to reputation. Plaintiffs were deprived of their liberty, detained against their will, subjected to an unlawful search and seizure and hindered and prevented from pursuing their customary and necessary activities
25. As a result of the foregoing, plaintiffs Kenneth Senghor, Michael Jones and Louis Nunez demands judgment against the defendants in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

SECOND CAUSE OF ACTION

26. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "25" above as if more fully set forth herein.
27. On December 20, 2015, the defendants THE CITY OF NEW YORK and P.O. Paul did maliciously cause a criminal prosecution to be commenced against

plaintiff, Kenneth Senghor, Michael Jones and Louis Nunez, without probable cause and in bad faith.

28. In commencing and continuing said malicious prosecution, the defendants caused the plaintiffs, Kenneth Senghor, Michael Jones and Louis Nunez to be falsely charged with the crime of Theft of Services.
29. Plaintiffs did not commit any illegal act(s).
30. Plaintiffs did not give the defendants probable cause to believe that they had committed any illegal act(s).
31. Defendant Paul in the course of his employment, gave false, misleading and incomplete information in causing said malicious prosecution to be initiated and continued without probable cause.
32. Defendant Paul, knew or should have known, through the exercise of reasonable care that his statements, affirmations and/or testimony, was false.
33. That the Court on or about November 14, 2016 dismissed all the criminal charges against plaintiff Kenneth Senghor.
34. That the criminal case against the plaintiffs Jones and Nunez are still pending.
35. Said malicious prosecution caused the plaintiffs, to incur legal expenses and loss of actual and potential income and to suffer severe physical and mental distress, emotional disturbances and humiliation.
36. The defendants, THE CITY OF NEW YORK, and P.O. Paul, acted with malice in causing and continuing the prosecution with knowledge that it could not succeed.
37. As a result of said malicious prosecution, plaintiff had suffered substantial and permanent damages.

38. As a result of the foregoing, plaintiff demands judgment against the defendants in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

THIRD CAUSE OF ACTION

39. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “38” above as if more fully set forth herein.
40. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in selecting defendant Paul as a police officer and improperly training and supervising defendant Paul in the skills necessary to exercise his authority as police officer.
41. Prior to and during the acts complained of herein, defendant THE CITY OF NEW YORK knew or in the exercise of their duties should have known the propensity of defendant Paul to act wrongfully and illegally in the pursuit of and during the course of his duties and functions. Despite this knowledge or their duty to know, defendant THE CITY OF NEW YORK entrusted the power and authority to act as a police officer to defendant Paul. Such actions constitute gross negligence on the part of defendant THE CITY OF NEW YORK.
42. By reason of said negligence of defendant THE CITY OF NEW YORK, plaintiffs have suffered and will suffer emotional, physical and mental distress for which they may require in the future medical and therapeutic care and treatment.
43. By reason of the aforesaid injuries, plaintiffs have been prevented from pursuing their customary activities and employment for which he has suffered and will suffer considerable losses.
44. As a result of the foregoing, plaintiffs Kenneth Senghor, Michael Jones and Louis

Nunez demands judgment against the defendants in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

FOURTH CAUSE OF ACTION

45. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "44" above as if more fully set forth herein.
46. The actions of the defendants hereto described constitute unlawful arrests and detention all in violation of plaintiffs Kenneth Senghor, Michael Jones and Louis Nunez's civil rights.
47. As a result of the conduct and actions of defendant Paul who was acting under color of law and who used excessive force, did deprive plaintiffs Kenneth Senghor, Michael Jones and Louis Nunez of their liberty and caused false charges to be lodged against plaintiffs and violated the plaintiffs' rights guaranteed by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the Civil Rights Act of 1871, 42 U.S.C. Sections 1981 and 1983 and comparable provisions of New York State Constitution, and New York State Law.
48. As a result of the foregoing, plaintiffs Kenneth Senghor, Michael Jones and Louis Nunez demands judgment against the defendant in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

WHEREFORE, plaintiffs Kenneth Senghor, Michael Jones and Louis Nunez respectfully demands judgment against the defendants in the amount of FOUR MILLION (\$4,000,000.00) DOLLARS in compensatory damages and TWO MILLION (\$2,000,000.00) DOLLARS in punitive damages, together with interest, costs and disbursements.

Dated: New York, New York

November 14, 2016

Yours, etc.

SAUL BIENENFELD, ESQ.

Law Offices of Saul Bienenfeld P.C.

Attorney for Plaintiffs

Kenneth Senghor, Michael Jones and Louis Nunez

450 Seventh Ave #1408

New York , N.Y. 10004

(212) 363-7701

**To:
City of New York
One Centre Street
NYC NY**

Police Officer Gustavo Paul

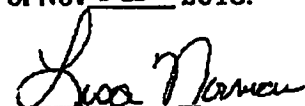
VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF NEW YORK)

Kenneth Senghor, being sworn says:

I am the Plaintiff in this action and I have read the annexed Complaint and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

Sworn to before me this 26th day
of Nov 26th 2016.


NOTARY PUBLIC

Kenneth Senghor



LISA NORMAN
Notary Public - State of New York
ID No. 01NO6103398
Qualified in Bronx County
My Commission Expires December 29, 2019

VERIFICATION

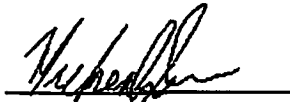
STATE OF NEW YORK)
)ss.:
COUNTY OF NEW YORK *Suffolk*)

Michael Jones, being sworn says:

I am the Plaintiff in this action and I have read the annexed Complaint and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

Michael Jones

Sworn to before me this ^{16th} day
of Nov 2016.


NOTARY PUBLIC

Sharad M. Desai
SHARAD M. DESAI
Notary Public, State of New York
No. 01DE4820582
Qualified in Suffolk County
Commission Expires *06/03/2018*

Louis Nunez, being sworn says:

I am the Plaintiff in this action and I have read the annexed Complaint and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

Louis Nunez _____

Louis

Nunez

Sworn to before me this 7th day
of Dec 2016.

Marta Perez
NOTARY PUBLIC

MARTA PEREZ
NOTARY PUBLIC-STATE OF NEW YORK

No. 01PE6305053

Qualified in Bronx County

My Commission Expires June 02, 2018

